

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CEDRIC NELSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANDREW GENAO, SHIELD NO. 26736, and POLICE
OFFICER JOHN GARCIA, SHIELD NO. 11965,

Defendants.
-----X

Index No.:

Date Filed:

SUMMONS

Plaintiff designates
Kings County as the place
of trial.

The basis of the venue:
CLPR §504 (3)
Locus of Occurrence.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 27, 2024

**FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C.**

Attorneys for Plaintiff

380 Lexington Ave – 29th Floor
New York, New York 10168
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

To: The City of New York
100 Church Street
New York, NY 10007

Police Officer Andrew Genao, Shield No. 26736, and
Police Officer John Garcia, Shield No. 11965
84th Precinct
301 Gold Street
Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CEDRIC NELSON,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
ANDREW GENAO, SHIELD NO. 26736, and POLICE
OFFICER JOHN GARCIA, SHIELD NO. 11965,

Defendants.
-----X

Plaintiff, CEDRIC NELSON, by his attorneys FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C., as for his Verified Complaint, alleges the following, upon
information and belief:

PARTIES

1. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK
was and still is a municipal corporation duly organized and existing under the laws of the
State of New York.

2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK
its agents, servants and employees operated, maintained and controlled the Police
Department of the City of New York, including all Police Officers thereof.

3. At all times hereinafter mentioned, on September 6, 2023, Defendants
POLICE OFFICER ANDREW GENAO, SHIELD NO. 26736 (hereinafter, "GENAO"), and
POLICE OFFICER JOHN GARCIA, SHIELD NO. 11965 (hereinafter, "GARCIA") were
employed by Defendant THE CITY OF NEW YORK, as police officers, and at all times

herein were acting in such a capacity as agents, servants and employees of Defendant THE CITY OF NEW YORK.

4. At all times hereinafter mentioned, Defendants GENAO and GARCIA were acting within the scope of their employment as police officers with Defendant THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, Defendants GENAO and GARCIA were assigned to the 84th Precinct.

6. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the Defendant.

7. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers, as said risks attach to the public consumers of the services provided by the New York City Police Department.

8. At all relevant times, the Defendants GENAO and GARCIA were acting pursuant to their authority as New York City Police Department employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual Defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of the New York City Police Department.

9. At all times hereinafter mentioned, the Plaintiff, CEDRIC NELSON (hereinafter, "NELSON") was a resident of the state of New York.

CONDITIONS PRECEDENT

10. On or about November 22, 2023, and within ninety (90) days of the occurrence complained of hereinafter, Plaintiff duly served a Notice of Claim upon the City of New York in the manner and mode required by law.

11. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action, adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

12. On October 24, 2024, the Plaintiff complied with the request of the municipal Defendant for an oral examination pursuant to Section 50-h of the General Municipal Law.

JURISDICTION AND VENUE

13. The Plaintiff brings this action in the Supreme Court, State of New York, County of Kings, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

14. The Plaintiff properly designates Kings County as the place of trial. The basis of the venue is the locus of the occurrence, pursuant to CPLR § 504 (3).

STATEMENT OF FACTS

15. On or about September 6, 2023, at approximately 10:51 p.m., Plaintiff was lawfully located at Bond Street and Wyckoff Street in Brooklyn and doing nothing illegal, improper or acting suspicious in any way, when he was attempting to meet up with his girlfriend for a date.

16. At the above specified time and place, several police officers, including but not limited to Defendants GENAO and GARCIA were on duty and in the vicinity of Bond Street and Wyckoff Street in Brooklyn, New York.

17. At the above specified time and place, without justification or provocation, and without an arrest warrant, probable cause, reasonable cause or any legal justification, Defendants GENAO and GARCIA, for no reason, and based on fraud, perjury and misrepresentations, illegally stopped, confined, unduly restrained, falsely arrested, and falsely imprisoned Plaintiff, NELSON, in an aggressive and excessive manner, and further chased and tackled Plaintiff using excessive force.

18. At the above specified time and place, Defendants GENAO and GARCIA knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff, NELSON, and said actions were based on fraud, perjury and misrepresentations.

19. Plaintiff, NELSON, was held at the 84th Precinct for approximately four (4) hours.

20. Plaintiff, NELSON, was then transferred to Brooklyn Hospital Center and held for approximately six (6) hours.

21. Plaintiff, NELSON, was then held at Central Booking for approximately twenty-five (25) hours.

22. Plaintiff, NELSON, was then released from Central Booking and forced to attend court approximately four times before all charges were dismissed.

AS AND FOR A FIRST CAUSE OF ACTION

23. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "22", inclusive, as though each were set forth at length herein.

24. On September 6, 2023, and thereafter, in the City of New York, State of New York, the Defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, and detained Plaintiff, NELSON, without any right or grounds thereof, and entered him on the records as under arrest.

25. On September 6, 2023, Plaintiff, NELSON, while lawfully in the vicinity of Bond Street and Wyckoff Street, County of Kings, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by Defendants THE CITY OF NEW YORK, GENAO and GARCIA of having committed a crime.

26. On September 6, 2023, and thereafter, Defendants THE CITY OF NEW YORK, GENAO and GARCIA further caused Plaintiff, NELSON, to have his fingerprints and photographs be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations and correctional facilities in the County of Kings, City and State of New York.

27. Defendants GENAO and GARCIA restrained the Plaintiff, NELSON, such that he was unable to move freely or otherwise leave the scene without apprising him as to why he was being placed under arrest.

28. Plaintiff was detained, arrested, and imprisoned by the Defendants, their agents, servants and/or employees without probable cause and/or justification.

29. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned arrest, detention, and imprisonment of Plaintiff, NELSON.

30. Defendants, their agents, servants and/or employees, intended to confine the Plaintiff, NELSON, Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement, and the confinement was not privileged.

31. At the time of his unlawful arrest, detention and imprisonment, Plaintiff, NELSON, had not committed or attempted to commit any illegal act or crime.

32. At the time of Plaintiff's unlawful arrest, Defendants knew that the aforementioned arrest and detention were false and without probable cause.

33. The said false arrest and false imprisonment caused Plaintiff, NELSON, to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

34. Defendants placed Plaintiff, NELSON, under arrest despite lacking an arrest warrant or probable cause to arrest Plaintiff.

35. Plaintiff, NELSON, was in police custody, was unlawfully detained and was falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive Plaintiff of his rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

36. It is alleged that Defendants THE CITY OF NEW YORK, GENAO and GARCIA, their agents, servants and employees, maliciously and intentionally detained, falsely detained, falsely imprisoned and humiliated Plaintiff, NELSON, in violation of his constitutional rights.

37. Plaintiff, NELSON, was released from custody on September 8, 2023.

38. As a direct result of the above Defendants' actions, Plaintiff, NELSON, suffered and continues to suffer severe mental anguish, humiliation, shame, emotional distress and damage to his reputation, some or all of which may be permanent.

39. Plaintiff, NELSON, suffered – and continues to suffer – greatly, and was and is emotionally traumatized by this detention and imprisonment.

40. The false criminal arrest and wrongful imprisonment of Plaintiff, NELSON, due to Defendants' knowledge of the lack of any legitimate cause or justification, were intentional, malicious, reckless, and in bad faith.

41. The above actions of defendants directly and proximately caused Plaintiff, NELSON, to be deprived of the following rights, privileges, and immunities under the United States Constitution and the laws of the City and State of New York: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law. As a result of the foregoing, Plaintiff, NELSON, demands judgment against Defendants THE CITY OF NEW YORK, GENAO and GARCIA in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

42. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "41," inclusive, as though each were set forth fully at length herein.

43. On September 6, 2023, at approximately 10:51 p.m. Plaintiff was at Bond Street and Wyckoff Street, County of Kings, City and State of New York, when he was intentionally touched, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by Defendants GENAO and GARCIA, who were acting within the scope of their employment and authority with Defendant THE CITY OF NEW YORK in such a manner as to knowingly cause injury to Plaintiff.

44. On September 7, 2023, Defendants commenced a criminal proceeding against Plaintiff knowing that Plaintiff had not committed any of the alleged criminal acts, and said proceeding was based on fraud, perjury, and misrepresentations.

45. That solely as a result of the aforesaid, Plaintiff's life was interfered with.

46. The aforementioned criminal proceeding against Plaintiff, NELSON, was continued for an extended period of time by Defendants with malice and in bad faith.

47. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of Plaintiff, NELSON, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

48. On December 12, 2023, the criminal action was terminated in favor of the Plaintiff.

49. Defendants lacked probable cause for the arrest and criminal proceeding, to wit, the Defendants did not witness any criminal acts, and the Defendants did not observe, nor did they have any probable cause to arrest Plaintiff.

50. Despite this lack of probable cause, known to Defendants immediately and prior to the arrest of Plaintiff, Defendants still falsely arrested Plaintiff and maliciously prosecuted him for crimes he did not commit.

51. Defendants acted with improper motive and actual malice by knowingly arresting and continuing to prosecute Plaintiff despite not having probable cause to do so.

52. Furthermore, Defendants continued the malicious prosecution of Plaintiff despite that there was no probable cause nor a warrant for the arrest, as Plaintiff was not doing anything illegal whatsoever.

53. As a result of the foregoing, Plaintiff, NELSON, demands judgment against Defendants THE CITY OF NEW YORK, GENAO and GARCIA in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

54. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "53," inclusive, as though each were set forth fully at length herein.

55. On September 6, 2023, and while in the custody of Defendants in the County of Kings, City and State of New York, Plaintiff, NELSON, was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by Defendants GENAO and GARCIA, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to Plaintiff.

56. On September 6, 2023, Defendants GENAO and GARCIA, acting as agents and on behalf of Defendant THE CITY OF NEW YORK, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff,

NELSON, in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, NELSON, and their act caused apprehension of such contact in the Plaintiff, and in a hostile and/or offensive manner touched and beat the Plaintiff and/or caused offensive bodily contact to the Plaintiff NELSON and caused such battery in and about his head, neck, back, body and limbs.

57. That by reason of the aforesaid intentional assault and battery, which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff NELSON suffered great and permanent bodily injuries in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, suffered conscious pain and suffering, and was otherwise damaged.

58. That as a result of the aforesaid assault and battery the Plaintiff, NELSON, was caused to sustain serious, severe, painful and permanent bodily injuries and was rendered sick, sore, lame and disabled and so remains, and was and will be compelled to seek medical aid and attention and incur expenses for the same in an endeavor to cure himself of said injuries, and he was and will be prevented from attending his usual occupation and duties.

59. That at all times hereinafter mentioned, the actions of Defendants THE CITY OF NEW YORK, GENAO and GARCIA as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

60. As a result of the foregoing, Plaintiff, NELSON, demands judgment against Defendants THE CITY OF NEW YORK, GENAO and GARCIA in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

61. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "60," inclusive, as though each were set forth fully at length herein.

62. The actions of Defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of Plaintiff NELSON's civil rights.

63. On September 6, 2023, at approximately 10:51 p.m., Plaintiff, NELSON, was lawfully in the vicinity of Bond Street and Wyckoff Street, County of Kings, City and State of New York, when he was stopped, questioned, searched and seized for no legal or legitimate reason.

64. Defendants deprived Plaintiff, NELSON, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

65. Defendants violated the civil and constitutional rights of Plaintiff, NELSON, a person within the meaning of 42 U.S.C. §1983, as set forth in the United States Constitution, by their institutionalized procedure and acts, and deprived Plaintiff, NELSON, of the rights secured by 42 U.S.C. §1983 and the Constitution of the State of New York.

66. Defendants' actions were undertaken in the course of their employment and under color of law and would not have existed but for said Defendants using their official

power, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

67. Plaintiff, NELSON, was stopped and frisked and arrested absent reasonable suspicion. The actions of said Defendants were pursuant to an illegal and improper stop and frisk program that was created by Defendants. Such custom, policy and program has created a class of citizens, including Plaintiff, NELSON, who have been illegally stopped and seized, searched and questioned based upon their race to meet arrest quotas.

68. That under the stop and frisk program, Defendant THE CITY OF NEW YORK permitted, condoned, or acted with deliberate indifference to the racial disparity of its application, evidenced by the fact that unnecessary or illegal frisks or searches were conducted, that a very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for a stop and frisk, that officers do not always fill out stop and frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of stop and frisk has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

69. That Defendant CITY OF NEW YORK has failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and have failed to discipline police officers who fail to fill out required UF-250s.

70. That Defendant THE CITY OF NEW YORK has failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent

citizens who have not done anything illegal or acted in a suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

71. Said policy, procedure, custom and practice of having arrest quotas and/or productivity goals which result in false arrests and malicious prosecution of innocent citizens was discussed by Justice Shira A. Scheindlin in David Floyd, et. al. v. City of New York, et. al., 08 CIV 1034 (SDNY). In that decision, she found by a preponderance of the evidence that the NYPD had an enormous Stop and Frisk program, that it was organized and hierarchical, that it was a result of institutional decisions and directives, and that it had been designed and revised at the highest levels by Defendants.

72. Justice Scheindlin further found that a preponderance of evidence shows that Defendants' policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, Defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that "Department managers can and must set performance goals - relating to "the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals." It further states that "uniformed members who do not demonstrate activities ... or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed."

73. Further, in the Floyd case, NYPD Officer Adhyl Polanco testified that the NYPD routinely arrests primarily minority populations without legal reason to do so, and are required or expected to do so, to satisfy arrest quotas.

74. Justice Scheindlin also discussed secret recordings made by Officer Adhyl Polanco, as well as Officers Adrian Schoolcraft and Pedro Serrano, which reveal “institutional pressure to increase enforcement numbers” by several Lieutenants, a Sergeant, and a Deputy Inspector employed by the NYPD.

75. Outside of the Floyd case, members of the NYPD have filed lawsuits against the City of New York and the NYPD, in which they assert systemic retaliation by the NYPD against officers who do not comply with the quota system, or who report instances of corruption. For example, a lawsuit filed by Retired Detective James Griffin stated that NYPD officers who report corruption are harassed, and that this hostile work environment is condoned by NYPD supervisors. Griffin v. City of New York, 880 F. Supp. 2d 384 (E.D.N.Y. 2012).

76. The NYC Department of Investigation Office of the Inspector General for the NYPD issued a report that determined that the NYPD routinely fails to discipline officers who have engaged in misconduct, fails to adequately track instances of abuse of power, fails to properly train officers and that the practice continued unabated.

77. The supervisors and policy making officers of Defendant THE CITY OF NEW YORK and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

78. Defendant THE CITY OF NEW YORK, and its Police Department, have sanctioned the above-described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of Plaintiff, NELSON, and others similarly situated.

79. Defendant THE CITY OF NEW YORK and its Police Department's tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, are silent in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments perpetuates the illegal conduct of the Police Department and therefore Defendant THE CITY OF NEW YORK.

80. As a result of the foregoing, Plaintiff, NELSON, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

81. As a result of the foregoing, Plaintiff, NELSON, demands judgment against Defendants THE CITY OF NEW YORK, GENAO and GARCIA in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

82. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "81," inclusive, as though each were set forth fully at length herein.

83. Defendant THE CITY OF NEW YORK, its agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining,

supervising and promoting its employees, including but not limited to Defendants GENAO and GARCIA, in that said police officers, as employees of Defendant THE CITY OF NEW YORK, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by Defendant THE CITY OF NEW YORK.

84. Defendant THE CITY OF NEW YORK failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that Defendant THE CITY OF NEW YORK failed to adequately test, analyze test results, and/or investigate the backgrounds and performances of Defendants GENAO and GARCIA.

85. Defendant THE CITY OF NEW YORK failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that Defendant THE CITY OF NEW YORK failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

86. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including Defendants GENAO and GARCIA with the knowledge that said police officers lacked the experience to be employed by the aforementioned Defendant, and were, therefore, unfit to be police officers.

87. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including Defendants GENAO and GARCIA, with knowledge that said police officers lacked the department to be employed by the aforementioned Defendant, and that said police officers had vicious propensities and were, therefore, unfit to be police officers.

88. Defendant THE CITY OF NEW YORK was also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer Defendants named herein, including numerous CCRB complaints, and due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

89. As a result of the foregoing, Plaintiff, NELSON, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

90. That at all times hereinafter mentioned, the actions of Defendants THE CITY OF NEW YORK, GENAO and GARCIA as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

91. As a result of the foregoing, Plaintiff, NELSON, demands judgment against Defendants THE CITY OF NEW YORK, GENAO and GARCIA in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

92. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "91," inclusive, as though each were set forth fully at length herein.

93. Defendants, their agents, servants and/or employees negligently, carelessly and recklessly performed their police duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have used under similar circumstances.

94. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of Plaintiff, NELSON; the violation of Plaintiff's civil and constitutional rights; and the resulting injuries to the mind therefrom;

were caused solely by reason of the negligence of the Defendants, their agents, servants and/or employees, without any negligence on the part of the Plaintiff, NELSON.

95. As a result of the foregoing, Plaintiff, NELSON, demands judgment against Defendants THE CITY OF NEW YORK, GENAO and GARCIA in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

96. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "95," inclusive, as though each were set forth fully at length herein.

97. Defendants' conduct towards Plaintiff was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

98. Defendants acted with the desire to cause Plaintiff, NELSON, mental distress, or acted under circumstances known to them which made it substantially certain that they would cause such mental distress.

99. Defendants acted with utter and reckless disregard of the consequences of their actions.

100. As a result of the foregoing, Plaintiff, NELSON, has sustained severe and debilitating physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, and soreness. Plaintiff sustained mental anguish and emotional upset, some injuries which are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries; and Plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to Plaintiff's great damage.

101. As a result of the foregoing, Plaintiff, NELSON, demands judgment against Defendants THE CITY OF NEW YORK, GENAO and GARCIA in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION

102. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "101," inclusive, as though each were set forth fully at length herein.

103. Upon information and belief, Defendant THE CITY OF NEW YORK, through Defendants GENAO and GARCIA, by their conduct and under color of state law, it is alleged that these officers had opportunities to intercede on behalf of Plaintiff, NELSON, to prevent the excessive use of force, but due to their intentional conduct or deliberate indifference declined or refused to do so.

104. As a direct and proximate result, Plaintiff suffered the injuries and damages described above.

105. As a result of the foregoing, Plaintiff, NELSON, demands judgment against Defendants THE CITY OF NEW YORK, GENAO and GARCIA in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

106. That by reason of the foregoing, Plaintiff, NELSON, was severely injured and damaged, sustained personal injuries, bruises, contusions, trauma, mental distress and other injuries; his civil rights were violated. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which are permanent in nature and duration, and Plaintiff will

be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and Plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to Plaintiff's great damage.

107. Plaintiff, NELSON, suffered a deprivation of his civil rights and liberty, was falsely arrested, falsely imprisoned, assaulted, battered, humiliated, embarrassed, unlawfully detained, and suffered emotional harm, shock, loss of reputation in the community, loss of self-esteem, and fear and anxiety as a result of this incident.

108. Plaintiff was deprived of his freedom.

109. As a result of the aforementioned acts, Defendants violated the rights of Plaintiff, NELSON, secured to him under the Fourth Amendment, Fifth Amendment, Eighth Amendment and Fourteenth Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

110. Plaintiff, NELSON, was caused to be falsely imprisoned, maliciously prosecuted, and to experience physical and emotional harm and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of Defendants.

111. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986 and under New York State Law.

112. As a result of the aforesaid, Plaintiff, NELSON, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff, CEDRIC NELSON, respectfully demands judgment against Defendants THE CITY OF NEW YORK, GENAO and GARCIA and requests the

following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fees, costs and disbursements of this action; such other and further relief as this Court may deem proper under the circumstances.

Dated: New York, New York
November 27, 2024

**FRIEDMAN, LEVY, GOLDFARB,
GREEN and PAGLEY, P.C.**

Attorneys for Plaintiff
380 Lexington Ave – 29th Floor
New York, New York 10168
(212) 307-5800

By: 

NICOLAS BAGLEY, ESQ.

ATTORNEY'S VERIFICATION BY AFFIRMATION

I, NICOLAS BAGLEY, affirm this 27th day of November 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the following is true, and I understand that this document may be filed in an action or proceeding in a court of law:

I am a member of FRIEDMAN, LEVY, GOLDFARB, GREEN & BAGLEY, P.C., attorneys of record for the Plaintiff. I have read the annexed

SUMMONS and VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff is because Plaintiff resides outside of the county wherein your affirmant maintains an office.

Dated: New York, New York
November 27, 2024



NICOLAS BAGLEY, ESQ.